

Parshuram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2022 · WRIT - C No. - 22197 of 2022 · **Writ disposed; petitioner relegated to clause 6.14 instalment remedy.**

HEADNOTE

A consumer seeking mandamus for instalment payment of electricity arrears and reconnection was relegated to paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The Allahabad High Court disposed of the writ on the licensee's statement that an application made within three weeks shall be decided in accordance with law within the following three weeks, without granting instalments or restoration on the merits.

FACTUAL SUMMARY

Parshuram filed Writ-C No. 22197 of 2022 in the Allahabad High Court seeking a mandamus to Electricity Distribution Division, Milak, Rampur, to allow him to pay electricity dues in easy instalments and to restore electricity connection No. 771718327896. Counsel for the distribution licensee submitted that the petitioner already had a remedy under paragraph 6.14 of the U.P. Electricity Supply Code, 2005. The Division Bench of Surya Prakash Kesarwani and Jayant Banerji, JJ. heard the parties on 5 August 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for electricity dues

HOLDING

A consumer seeking leave to pay electricity arrears in instalments, and reconnection of supply, has a remedy under clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ on the licensee's statement that if the consumer applies to the concerned respondent within three weeks, the application shall be decided in accordance with law within the next three weeks, without granting instalments or reconnection on the merits. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court accepted that clause 6.14 of the Supply Code is the forum for a consumer's request to pay electricity dues in easy instalments, and relegated the petitioner to that remedy with a three-week window to apply and a further three weeks for a decision in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALMENTS OF ELECTRICITY DUES UNDER CLAUSE 6.14

Left to the concerned respondent to decide any application in accordance with law. ¶ 1

NOT DECIDED — WHETHER ELECTRICITY CONNECTION NO. 771718327896 SHOULD BE RESTORED

No merits direction for reconnection; the writ was disposed of on the clause 6.14 statement. ¶ 1